

25CHCV02505 25CHCV02505

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Case Number: 25CHCV02505 Hearing Date: July 16, 2026 Dept: F43

Dept. F43

Hearing Date: 07-16-26

Case # 25CHCV02505, Quintero v. Geragosian

Trial Date: 10-30-28

MOTION TO COMPEL

RESPONSES TO REQUESTS FOR PRODUCTION

MOVING PARTY: Defendant Saro Geragosian

RESPONDING PARTY: No response was filed.

RELIEF REQUESTED

Order compelling plaintiff Daniela Haro's
objection-free responses to defendant's first set of requests for production
and imposing \$435 in monetary sanctions against plaintiff Haro and her counsel
of record, Igor Fradkin and Downtown LA Law Group, jointly and severally.

RULING: Motion is granted. The court awards Defendant \$435 in monetary
sanctions.

SUMMARY OF ACTION

The personal injury action arises out of a

vehicle collision that occurred on State Route 118 on August 31, 2023. Plaintiffs Lilia Quintero and Daniela Haro allege that defendant Saro Geragosian (Defendant) collided with their vehicle while changing lanes and immediately fled the scene of the collision. As a result, Plaintiffs suffered injuries and damages. On July 16, 2025, Plaintiffs filed a complaint against Defendant, pleading four causes of action: (1) motor vehicle; (2) negligence; (3) misdemeanor hit and run in violation of Vehicle Code section 20001, subdivision (a); and (4) intentional infliction of emotional distress.

On September 30, 2025, Defendant filed a demurrer to the Complaint's third and fourth causes of action and a motion to strike punitive damages. The court sustained the demurrer without leave to amend the third cause of action and with leave to amend the fourth cause of action within 30 days. (10/23/2025 Minute Order, at p. 8.) The court also granted the motion to strike with leave to amend, but no amended complaint was filed.

On October 8, 2025, Defendant electronically served his first set of requests for production on plaintiff Daniela Haro. (Declaration of Nageen C. Jalali ¶ 2, Exh. A.) Responses were due November 10, 2025. Defendant granted plaintiff Haro six deadline extensions from November 7, 2025 through January 19, 2026, and denied a final extension request. (Id. ¶ 3, Exh. B.) On January 30, 2026, defense counsel emailed plaintiff's counsel, requesting the status of the responses. (Id. ¶ 4, Exh. B at p. 1.) Plaintiff Haro unilaterally selected a responsive deadline of February 2, 2026. (Id. ¶ 4.) As of May 27, 2026, no responses have been served.

On May 27, 2026, Defendant filed the instant motion to compel plaintiff Daniela Haro's objection-free, verified responses to his first set of requests for production and to impose \$435 in monetary sanctions against plaintiff Haro and her counsel of record, jointly and severally. No opposition was filed.

ANALYSIS

A. Compelling Responses to Requests for Production

A demanding party may move to compel responses to requests for production where the responding party fails to provide any responses. (Code Civ. Proc., §§ 2031.300, subd. (b), 2030.290, subd. (b).)

The demanding party must show the requests were properly served, that the time to respond expired, and no response has been served. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403-404.) The responding party must respond separately to each demand by agreeing to comply, stating an inability to comply, or objecting to all or part of the demand.

(Code Civ. Proc., § 2031.210, subd. (a).) The responding party must serve responses within 30 days after the requests for production are served or according to an agreed upon deadline extension. (Code Civ. Proc., § 2031.260, subd. (a)(1)-(3).)

Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

After reviewing the moving papers, the court finds Defendant properly served plaintiff Haro with his requests for production. But plaintiff Haro failed to serve responses by the original deadline or the subsequent deadline extensions. Moreover, plaintiff Haro did not file an opposition, presenting a substantial justification for the delay in serving responses.

Therefore, the court grants defendant Saro Geragosian's motion to compel responses to his first set of requests for production. Plaintiff Daniela Haro is ordered to serve objection-free, verified responses and responsive documents within 30 days of this order.

B. Sanctions

Defendant asks the court to impose \$435 in monetary sanctions against plaintiff Daniela Haro and her counsel of record. (Jalali Decl. ¶ 6.)

The court must impose sanctions against the party or attorney, or both, who unsuccessfully makes or opposes a motion to compel a response to requests for production, unless the court finds that the sanctioned party "acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).)

Defendant is entitled to sanctions because plaintiff Haro has failed to serve any code-compliant responses and to provide a substantial

justification for not serving any responses.

Defendant's counsel, Nageen C. Jalali, charges \$250 per hour. (Jalali Decl. ¶ 6.) The request includes: 1.5 hours preparing the motion and a \$60 filing fee.

The court finds the requested hourly rate and time billed is reasonable.

Therefore, the court grants Defendant's request for \$435 in monetary sanctions.

CONCLUSION and ORDER

The court grants defendant Saro Geragosian's motion to compel plaintiff Daniela Haro's responses to defendant's first set of requests for production.

The court orders Plaintiff to serve code-compliant, objection-free, and verified responses within thirty (30) days of this order.

The court awards defendant Saro Geragosian \$435 in monetary sanctions. Plaintiff Haro and her attorney of record are ordered to pay defense counsel within thirty (30) days of this order.

Defendant Saro Geragosian to give notice.